

# Assessment, Investigation & Resolution Considerations

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| VERSION<br><b>1.0</b> | EFFECTIVE<br> | NEXT REVIEW<br> | OWNER<br> | APPROVED BY<br> |
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A six-step strategy for a Complaint Manager, Incident Manager or external investigator, to be adapted to the particular matter. Most complaints will not need a full investigation; complex or serious complaints — including serious misconduct allegations — will.

## 1. Step 1 — Assessment

- Make sure you understand the complaint and the support or service that caused it, from the perspective of the complainant and of any person with disability affected.
- If you are unsure what the complaint is about or what the complainant expects, contact them to clarify.
- Resolve straight away where you can, and confirm the action taken with the complainant and any affected person.
- If you do not have the authority or knowledge to resolve it, promptly refer or escalate — and keep the complainant informed.
- Consider consumer vulnerability: does the complainant need an interpreter, translation, or information in another format? Track the time allowed, list the major and minor issues, and check the status of any third parties (mindful of confidentiality and privacy).

## 2. Step 2 — Investigation

- Get to know the service being reviewed — the relevant policies, processes, codes of practice, participant information and service charters.
- Share details only with colleagues who need to know, on a confidential basis. Gather files, correspondence, statements, incident notes and call notes.
- Describe the chronology of events before and after the complaint, and identify areas of dispute and areas needing further investigation.
- When requesting comments from colleagues or partner organisations, agree a deadline. Corroborate statements and identify areas for further questioning.
- **Interviews** (by phone or in person): decide who, where and when; know what information you need; keep a record and highlight key points; be sensitive to vulnerability; introduce yourself and give contact details; listen carefully; ask relevant questions; do not promise the unachievable; and agree the next steps before ending. Keep the complaint register up to date.

## 3. Step 3 — Weighing the evidence

- Challenge the evidence, look behind it, and ask whether you need more. Watch for common pitfalls — incorrect information, staff working to old policy versions, gaps in policy or process, misfiled correspondence, missed process steps, or a complainant confusing this matter with another.

- Measure the evidence against legislation and NDIS Commission guidance, internal policies and procedures, participant information, service charters, precedent and the terms of the Services Agreement.
- If the evidence is not clear-cut you can re-interview, seek more evidence, obtain a legal opinion, or seek advice from another team, an ombudsman or a regulator. If you need more time, send a holding response explaining why.

#### 4. Step 4 — Correcting mistakes

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Investigations uncover mistakes — a poor-quality service, unreasonable delay, failure to meet a standard, failure to comply with the law, failure to follow a policy, unfair discrimination, failure to tell a person of their rights, inaccurate advice, or poor communication. Talk to workers so they know what to expect, fix the mistake, and take positive steps to prevent it happening again.

#### 5. Step 5 — Putting things right

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Putting things right early gives you a better chance of satisfying the complainant. Actions may include: an apology; information or an explanation; reviewing participant literature or an operational process; arranging training or guidance for staff; addressing under-performance; or a goodwill gesture or refund. The objective is to put the person back to the position they would have been in but for the mistake.

**Financial redress** — consider whether the person's own actions contributed; whether the mistake caused them to reasonably incur costs, lose a non-monetary benefit, or experience inconvenience, stress or anxiety; whether they had to pay for professional advice; whether any regulation or agreement requires compensation; how long resolution took; how much time and trouble the person was put to; how inadequate previous responses were; and whether the organisation acted deliberately.

#### 6. Step 6 — Respond

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An effective response reassures the complainant and demonstrates professionalism. Concentrate on the positives and show you understand their feelings. In a written response: open with a clear statement that you are responding to the complaint; restate your understanding of it in a logical sequence; summarise the facts and your findings, with reasons; explain your decision (good news first) and clear up any queries; close with a goodwill statement; and signpost how to escalate the complaint, including to the NDIS Commission.

**Quality and style** — proofread and, where possible, have someone else review the response. Use a clear typeface at 10–12 point; never use full capitalisation; use plain English ("try" not "endeavour", "about" not "with regard to"); avoid legal jargon and abbreviations; use headings if the letter is long; and avoid biased language.